

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index #
Date of filing:

-----X
SHERON MOORE,

Plaintiff designates Bronx
County as the place of trial

Plaintiff,

Basis of the venue is the Locus of
Occurrence

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
DEPARTMENT OF SANITATION, NEW YORK CITY
DEPARTMENT OF SANITATION POLICE
DEPARTMENT/ENFORCEMENT OFFICER EDWIN
RODRIGUEZ, POLICE OFFICER VINCENT MAURO-
Shield # 18615 and JOHN DOES-Police Officers as yet
unidentified,

SUMMONS

Plaintiff resides at
1263 Clay Avenue, Apt# 1B
Bronx, New York 10456

County of Bronx

Defendants.

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

THE NEW YORK CITY DEPARTMENT OF
SANITATION
125 Worth Street
New York, New York 10013

NEW YORK CITY DEPARTMENT OF
SANITATION POLICE DEPARTMENT/
ENFORCEMENT OFFICER EDWIN
RODRIGUEZ
c/o The New York City Department of
Sanitation
125 Worth Street
New York, New York 10013

Defendant's address:

POLICE OFFICER VINCENT MAURO-Shield
18615
c/o New York City Police Department- 44th
Precinct
2 East 169th Street
Bronx, New York 10452

Dated: Brooklyn, New York
August 17, 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
SHERON MOORE,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
DEPARTMENT OF SANITATION, NEW YORK CITY
DEPARTMENT OF SANITATION POLICE
DEPARTMENT/ENFORCEMENT OFFICER EDWIN
RODRIGUEZ, POLICE OFFICER VINCENT MAURO-
Shield # 18615 and JOHN DOES-Police Officers as yet
unidentified,

Defendants.

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Plaintiff, by her attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully shows to this Court, and alleges as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT AND
BATTERY AGAINST THE DEFENDANTS, THE CITY OF NEW YORK, THE NEW
YORK CITY DEPARTMENT OF SANITATION AND THE NEW YORK CITY
DEPARTMENT OF SANITATION POLICE DEPARTMENT/ENFORCEMENT
OFFICER EDWIN RODRIGUEZ, ON BEHALF OF SHERON MOORE**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident
of the County of Bronx, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK,
was and still is a municipal corporation, duly organized and existing pursuant to the laws of the
State of New York.
3. That all times hereinafter mentioned, the defendant, THE NEW YORK CITY
DEPARTMENT OF SANITATION, was and still is a municipal corporation, duly organized and
existing pursuant to the laws of the State of New York.
4. That the defendant, THE CITY OF NEW YORK, maintains a police force known
as the NEW YORK CITY POLICE DEPARTMENT.

5. That the defendant, THE NEW YORK CITY DEPARTMENT OF SANITATION, maintains a police force known as the NEW YORK CITY DEPARTMENT OF SANITATION POLICE DEPARTMENT/ENFORCEMENT.

6. That prior hereto on December 18, 2017, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

7. That prior hereto on December 18, 2017, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE NEW YORK CITY DEPARTMENT OF SANITATION, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

8. That on March 5, 2018, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.

9. That on October 3, 2017, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF SANITATION, employed NEW YORK CITY DEPARTMENT OF SANITATION POLICE DEPARTMENT/ENFORCEMENT OFFICER EDWIN RODRIGUEZ, as an agent, servant and/or employee.

10. That on October 3, 2017, and at all times hereinafter mentioned and upon information and belief, the plaintiff, SHERON MOORE, was lawfully at or about the roadway in front of the premises known as 1263 Clay Avenue, and thereafter continued at or about the intersection of 168th Avenue and Clay Avenue, in the County of Bronx, City and State of New York.

11. That on October 3, 2017, and at all times hereinafter mentioned and upon information and belief, the plaintiff, SHERON MOORE, was assaulted and battered while at the aforementioned location by the defendant, NEW YORK CITY DEPARTMENT OF SANITATION POLICE DEPARTMENT/ENFORCEMENT OFFICER EDWIN RODRIGUEZ, who was acting within the scope of his employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF SANITATION, at the aforesaid premises.

12. That on October 3, 2017, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

13. That on October 3, 2017, and at all times hereinafter mentioned and upon information and belief the defendant, NEW YORK CITY DEPARTMENT OF SANITATION POLICE DEPARTMENT/ENFORCEMENT OFFICER EDWIN RODRIGUEZ, who committed the aforementioned assault and battery upon the plaintiff, SHERON MOORE, was acting within the scope of his employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF SANITATION.

14. That on October 3, 2017, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

15. By reason of said assault and battery, the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

16. By the reason of the foregoing, the plaintiff, SHERON MOORE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT HIRING AND RETENTION AGAINST THE DEFENDANTS, THE CITY OF NEW YORK, THE NEW YORK CITY DEPARTMENT OF SANITATION AND NEW YORK CITY DEPARTMENT OF SANITATION POLICE DEPARTMENT/ENFORCEMENT OFFICER EDWIN RODRIGUEZ, ON BEHALF OF SHERON MOORE

17. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "16" herein, as though more fully set forth herein at length.

18. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF SANITATION, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, enforcement officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, NEW YORK CITY DEPARTMENT OF SANITATION POLICE DEPARTMENT/ENFORCEMENT OFFICER EDWIN RODRIGUEZ, who assaulted, battered and violated the civil rights of the plaintiff, SHERON MOORE.

19. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF SANITATION, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, NEW YORK CITY DEPARTMENT OF SANITATION POLICE DEPARTMENT/ENFORCEMENT OFFICER EDWIN RODRIGUEZ, and continued to employ them and allowed them to be in contact with the public at large.

20. By the reason of the foregoing, the plaintiff, SHERON MOORE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE ARREST AGAINST THE CITY OF NEW YORK, POLICE OFFICER VINCENT MAURO-SHIELD #18615 AND JOHN DOES-POLICE OFFICERS, AS YET UNIDENTIFIED, ON BEHALF OF SHERON MOORE

21. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1"

through "20" herein, as though more fully set forth herein at length.

22. That on October 3, 2017, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER VINCENT MAURO-Shield # 18615 and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, SHERON MOORE, after being assaulted and battered by the defendant, NEW YORK CITY DEPARTMENT OF SANITATION POLICE DEPARTMENT/ ENFORCEMENT OFFICER EDWIN RODRIGUEZ, who was acting as an agent, servant and/or employee of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF SANITATION, at or about the roadway in front of the premises known as 1263 Clay Avenue, and thereafter continued at or about the intersection of 168th Avenue and Clay Avenue, in the County of Bronx, City and State of New York.

23. That on October 3, 2017, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

24. That as a result of the aforesaid false arrest and confinement, plaintiff, SHERON MOORE, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

25. By the reason of the foregoing, the plaintiff, SHERON MOORE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT AGAINST THE CITY OF NEW YORK, POLICE OFFICER
VINCENT MAURO- SHIELD #18615 AND JOHN DOES-POLICE OFFICERS,
AS YET UNIDENTIFIED, ON BEHALF OF SHERON MOORE**

26. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "25" herein, as though more fully set forth herein at length.

27. That on October 3, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER VINCENT MAURO-Shield # 18615 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, when they, without justification and without probable cause, imprisoned the plaintiff, SHERON MOORE.

28. That the defendants, POLICE OFFICER VINCENT MAURO-Shield # 18615 and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, intentionally confined the plaintiff SHERON MOORE, against her will and said confinement was not privileged.

29. By the reason of the foregoing, the plaintiff, SHERON MOORE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION AGAINST OF THE CITY OF NEW YORK, POLICE
OFFICER VINCENT MAURO- SHIELD #18615 AND JOHN DOES-POLICE
OFFICERS, AS YET UNIDENTIFIED, ON BEHALF OF SHERON MOORE**

30. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "29" herein, as though more fully set forth herein at length.

31. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER VINCENT MAURO-Shield # 18615 and JOHN DOES-Police Officers as yet unidentified, who falsely arrested and falsely imprisoned and violated the civil rights of the plaintiff, SHERON MOORE.

32. That the defendants, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER VINCENT MAURO-Shield # 18615 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

33. By the reason of the foregoing, the plaintiff, SHERON MOORE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS AGAINST
THE DEFENDANTS, THE CITY OF NEW YORK, THE NEW YORK CITY
DEPARTMENT OF SANITATION AND NEW YORK CITY DEPARTMENT
OF SANITATION POLICE DEPARTMENT/ENFORCEMENT
OFFICER EDWIN RODRIGUEZ, ON BEHALF OF SHERON**

34. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "33" herein, as though more fully set forth herein at length.

35. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF SANITATION, including but not limited to NEW YORK CITY DEPARTMENT OF SANITATION POLICE DEPARTMENT/ENFORCEMENT OFFICER EDWIN RODRIGUEZ, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

36. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, SHERON MOORE.

37. That as a result of said intentional and negligent acts, the plaintiff, SHERON MOORE, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of her person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

38. By reason of the foregoing, the plaintiff, SHERON MOORE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS AGAINST THE
DEFENDANTS, THE CITY OF NEW YORK, POLICE OFFICER VINCENT
MAURO-SHIELD #18615 AND JOHN DOES-POLICE OFFICERS, AS YET
UNIDENTIFIED, ON BEHALF OF SHERON MOORE**

39. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "38" herein, as though more fully set forth herein at length.

40. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER VINCENT MAURO-Shield # 18615 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff, SHERON MOORE, through their actions.

41. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, SHERON MOORE.

42. That as a result of said intentional and negligent acts, the plaintiff, SHERON MOORE, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of her person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

43. By reason of the foregoing, the plaintiff, SHERON MOORE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION AGAINST THE DEFENDANTS, THE CITY OF NEW YORK, THE
NEW YORK CITY DEPARTMENT OF SANITATION AND THE NEW YORK CITY
DEPARTMENT OF SANITATION POLICE DEPARTMENT/ENFORCEMENT
OFFICER EDWIN RODRIGUEZ, ON BEHALF OF SHERON MOORE**

44. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "43" herein, as though more fully set forth herein at length.

45. That on October 3, 2017, and at all times hereinafter mentioned and upon information and belief, the defendant, NEW YORK CITY DEPARTMENT OF SANITATION POLICE DEPARTMENT/ENFORCEMENT OFFICER EDWIN RODRIGUEZ, within the scope of his employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF SANITATION, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

46. That on October 3, 2017, and at all times hereinafter mentioned and upon information and belief, the defendant, NEW YORK CITY DEPARTMENT OF SANITATION POLICE DEPARTMENT/ENFORCEMENT OFFICER EDWIN RODRIGUEZ, was acting within the scope of his employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF SANITATION, maliciously prosecuted the plaintiff.

47. That on October 3, 2017, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

48. By reason of the foregoing, plaintiff, SHERON MOORE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Court.

**AS AND FOR A NINTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION AGAINST THE DEFENDANTS, THE CITY OF NEW YORK,
POLICE OFFICER VINCENT MAURO-SHIELD #18615 AND JOHN DOES-POLICE
OFFICERS, AS YET UNIDENTIFIED, ON BEHALF OF SHERON MOORE**

49. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "48" herein, as though more fully set forth herein at length.

50. That on October 3, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER VINCENT MAURO-Shield # 18615 and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment with the defendant, THE CITY OF NEW YORK, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

51. That on October 3, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER VINCENT MAURO-Shield # 18615 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, maliciously prosecuted the plaintiff.

52. That on October 3, 2017, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

53. By reason of the foregoing, plaintiff, SHERON MOORE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TENTH CAUSE OF ACTION FOR CIVIL RIGHTS VIOLATION
AGAINST THE DEFENDANTS, THE CITY OF NEW YORK, THE NEW YORK
CITY DEPARTMENT OF SANITATION AND THE NEW YORK CITY
DEPARTMENT OF SANITATION POLICE DEPARTMENT/ENFORCEMENT
OFFICER EDWIN RODRIGUEZ, ON BEHALF OF SHERON MOORE**

54. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "53" herein, as though more fully set forth herein at length.

55. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF SANITATION through policies, practices and customs, directly caused the

constitutional violation suffered by plaintiff.

56. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF SANITATION, through their police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to NEW YORK CITY DEPARTMENT OF SANITATION POLICE DEPARTMENT/ ENFORCEMENT OFFICER EDWIN RODRIGUEZ, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

57. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

58. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendant, including but not limited to NEW YORK CITY DEPARTMENT OF SANITATION POLICE DEPARTMENT/ ENFORCEMENT OFFICER EDWIN RODRIGUEZ, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

59. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendant, including but not limited to NEW YORK CITY DEPARTMENT OF SANITATION POLICE DEPARTMENT/ENFORCEMENT OFFICER EDWIN RODRIGUEZ, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

60. As a direct and proximate result of this unlawful conduct, the plaintiff, SHERON MOORE, sustained the damages hereinbefore alleged.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION AGAINST THE DEFENDANTS, THE CITY OF NEW YORK,
POLICE OFFICER VINCENT MAURO-SHIELD #18615 AND JOHN DOES-POLICE
OFFICERS, AS YET UNIDENTIFIED, ON BEHALF OF SHERON MOORE**

61. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "60" herein, as though more fully set forth herein at length.

62. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff.

63. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER VINCENT MAURO-Shield # 18615 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

64. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

65. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER VINCENT MAURO-Shield # 18615 and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

66. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER VINCENT MAURO-Shield # 18615 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

67. As a direct and proximate result of this unlawful conduct, the plaintiff, SHERON MOORE, sustained the damages hereinbefore alleged.

**AS AND FOR A TWELFTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
AGAINST THE DEFENDANTS, THE CITY OF NEW YORK, THE NEW YORK
CITY DEPARTMENT OF SANITATION AND NEW YORK CITY DEPARTMENT
OF SANITATION POLICE DEPARTMENT/ENFORCEMENT
OFFICER EDWIN RODRIGUEZ, ON BEHALF OF SHERON**

68. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "67" herein, as though more fully set forth herein at length.

69. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

70. That the defendant, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF SANITATION, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to NEW YORK CITY DEPARTMENT OF SANITATION POLICE DEPARTMENT/ENFORCEMENT OFFICER EDWIN RODRIGUEZ, herein-above alleged.

71. By the reason of the foregoing, the plaintiff, SHERON MOORE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
OF THE DEFENDANTS, THE CITY OF NEW YORK, POLICE OFFICER
VINCENT MAURO-SHIELD #18615 AND JOHN DOES-POLICE OFFICERS,
AS YET UNIDENTIFIED, ON BEHALF OF SHERON MOORE**

72. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "71" herein, as though more fully set forth herein at length.

73. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

74. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER VINCENT MAURO-Shield # 18615 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

75. By the reason of the foregoing, the plaintiff, SHERON MOORE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, SHERON MOORE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, SHERON MOORE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, SHERON MOORE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, SHERON MOORE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, SHERON MOORE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, SHERON MOORE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, SHERON MOORE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, SHERON MOORE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; plaintiff, SHERON MOORE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Ninth** Cause of Action; plaintiff, SHERON MOORE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Tenth** Cause of Action; plaintiff,

SHERON MOORE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eleventh** Cause of Action; plaintiff, SHERON MOORE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twelfth** Cause of Action; plaintiff, SHERON MOORE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirteenth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
August 17, 2018

Yours, etc., 

ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
SHERON MOORE
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 17SM10-03

ATTORNEY'S VERIFICATION BY AFFIRMATION

ROBERT MIJUCA, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
August 17, 2018


ROBERT MIJUCA, ESQ.